

# SECOND AMENDED STATEMENT OF FACTS AND CONTENTIONS (FORM 9A) – DRAFT

WC/2024/227 – Cory Lea Shepherd (Appellant) v Workers' Compensation Regulator (Respondent). Section 550(4), Workers' Compensation and Rehabilitation Act 2003.

Black is pleaded text. Blue is a paragraph admitted by the Respondent on 8 September 2026, word for word, with its number on the notice served 28 August 2026. 298 of 303 admitted; five not admitted; none denied. Rule 49, for this proceeding only. Red is not yet admitted, or not supported by the notice and to be proved otherwise.

■ DRAFT. Leave required; not before 30 September 2026, and not less than seven days before the hearing. ■ The onus is accepted as resting on the Appellant — see Part C.1.

## PART A

Appellant: Cory Lea Shepherd. Employer: State of Queensland (Queensland Health) – Logan Hospital Switchboard. Role: Administration Officer, Switchboard Services, classification AO3, a continuous shift working role.

**Injury:** major depressive disorder with anxious distress (DSM-5 296.23), diagnosed by the Appellant's treating psychiatrist on 24 October 2024.

**The injury is a diagnosed medical condition arising from the Appellant's employment over the course of conduct pleaded at Part B.2 below, between approximately June 2023 and June 2024. It is not pleaded as arising from an event occurring on a single day.** The date of injury recorded on the work capacity certificates of the treating general practitioner is 18 June 2024. That date is the practitioner's and is a matter for the medical evidence; the Appellant asserts no date of onset of his own.

[1] The document at Annexure A, Tab 1 is a role description for the position of Administration Officer, Switchboard Services, Logan Hospital, which states the classification as "A03". (Annexure A, Tab 1)

[2] That role description states: "The occupant of this position is required to work continuous shift work over the full 24-hour period, 7 days a week". (Annexure A, Tab 1)

[3] That role description states: "This position reports to the Switchboard Manager, Corporate Services, Logan Hospital". (Annexure A, Tab 1)

[4] That role description names the contact for the position as "Chloe Taylor". (Annexure A, Tab 1)

[13] That role description states, under mandatory requirements: "The position is a continuous shift working role. You must be able to work a roster which covers multiple shifts over a 24/7 period". (Annexure A, Tab 1)

[14] Metro South Hospital and Health Service approved three movement forms recording changes to the Appellant's working hours, dated 27 February 2026, 17 April 2026 and 9 June 2026, each approved by Mr Scott Hughes as delegate. (Annexure A, Tabs 17-19)

[15] Each of those three movement forms records the Appellant's shift arrangements as "Continuous Shift Worker". (Annexure A, Tabs 17-19)

[16] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Appellant ceased to be a continuous shift worker at any time before 18 June 2024.

## PART B — MATERIAL FACTS

### 1. Baseline — the medical record

1.1 The Switchboard receives emergency response notifications and distributes them to the response groups by category of emergency, and maintains the contact and paging information by which that is done.

**Duty engaged — the role description states:**

[8] That role description states, as a key responsibility: "Participate in the Emergency Response process by receiving emergency response notifications and distributing them to the appropriate response groups, dependent on the category of emergency, as per emergency code procedures, strictly adhering to protocols and timeframes". (Annexure A, Tab 1)

[7] That role description states, as a key responsibility: "Provide a service to support hospital staff in the allocation, coordination, and fault repair of all pager units for the hospital. This includes allocating pagers to hospital staff and submitting paging units for repair, maintaining database and registers with accurate and current information". (Annexure A, Tab 1)

[5] That role description states, as a key responsibility: "Maintain call queues to minimum at all times". (Annexure A, Tab 1)

[10] That role description states, as a key responsibility: "The ability to multitask and operate under pressure, particularly where high volume call traffic is concerned". (Annexure A, Tab 1)

■ THE MEDICAL IS NOT IN THE NOTICE — no paragraph of the 303 refers to any medical record, practitioner, referral, certificate or diagnosis. Everything at 1.2 to 1.10 is proved from the schedule of medical documents served 9 September 2026 (Tabs M1 to M9) and, as to clinical opinion, by the oral evidence of its author (Appeal Guide 7.6.5). The pinpoints carried in the Amended Form 9A of 7 April 2026 ("Form 24, Para 34/36/38/39") refer to the SUPERSEDED notice of February 2026 and must not be carried forward.]

1.2 **Prior health.** Before 18 June 2024 the Appellant had not been diagnosed with or treated for depression. The general-practice record of 16 November 2023 (Dr Nanayakkara) records poor sleep with shift work, that the Appellant could not do shifts without a good sleep, "no psychological illness such as depression or psychosis", and mood good, with melatonin and temazepam prescribed that day. [Tab M1 — general-practice records, Our Medical Ashmore, 1 January 2023 to 1 July 2024, obtained by the Respondent under the Form 29 signed 4 July 2025; Respondent's item 11.] Relied upon as the contemporaneous record that shift work was affecting the Appellant's sleep, and of what was prescribed for it, before any claim or proceeding. Its clinical significance is a matter for the treating doctors. Private entries unrelated to the injury are redacted on the extracted pages and marked as such.

[2] That role description states: "The occupant of this position is required to work continuous shift work over the full 24-hour period, 7 days a week". (Annexure A, Tab 1)

[13] That role description states, under mandatory requirements: "The position is a continuous shift working role. You must be able to work a roster which covers multiple shifts over a 24/7 period". (Annexure A, Tab 1)

[214] On 1 May 2024 at 1:18 pm the Appellant sent an email to Ms Reese with the subject "Re: Roster Concerns" referring to section 4, clause 10.4.1 of the Operations Manual and stating: "This section includes a toolkit required by management to manage fatigue and implement appropriate protocols and adhere to the workplace health and safety act." (Annexure A, Tab 7)

[218] On 10 May 2024 at 2:08 pm Ms Reese sent an email to Mr Mackenzie Pritchard of Human Resources forwarding the Appellant's email of 1 May 2024, which states: "I think he is trying to raise that he has concerns over how his manager is rostering for the Switchboard team and how it is impacting on staff fatigue, or more specifically his fatigue." (Annexure A, Tab 8)

[263] By letter dated 5 June 2026, reference K-LM26/729, signed by Ms Noelle Cridland as Chief Executive of Metro South Hospital and Health Service and addressed to Commissioner Dwyer, Metro South Health stated in relation to Item 4: "the requested documents do not exist. Mandatory Fatigue Risk Management System training only applies to health practitioners and clinical assistants. The Logan Hospital Switchboard staff are non-clinical staff, and therefore there is no mandatory requirement for them to complete Fatigue Risk Management System training." (Annexure A, Tab 20)

[264] That letter states in relation to Item 5: "The implementation of fatigue risk management assessment at Switchboard Logan Hospital occurred after 30 June 2024 in connection with an organisational change related to the reporting lines for Switchboard." (Annexure A, Tab 20)

[265] That letter states in relation to Item 7: "the requested documents do not exist. Mandatory Fatigue Risk Management System training only applies to health practitioners and clinical assistants." (Annexure A, Tab 20)

[269] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any fatigue risk assessment was conducted in respect of the Appellant's position at any time before 30 June 2024.

[270] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any fatigue risk management training was provided to the Appellant in respect of his position at any time before 30 June 2024.

[271] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that fatigue risk management assessment was implemented at Logan Hospital Switchboard at any time before 30 June 2024.

1.3 **The referral of 16 May 2024.** The referral letter of 16 May 2024 (Dr Zhao) renews a referral to a psychiatrist, Dr Amini, for "ongoing care and management". It lists the past medical history as the history-list items "26/10/2022 ADHD" and "26/10/2022 Anxiety", and lists the medications then current, **which include no antidepressant, no anxiolytic and no other psychotropic medication.** [Tab M1.] It was written the day after the email of 15 May 2024 at 6:23 pm asking the Appellant to retract his email of that afternoon. That sequence is pleaded as to date only; no connection between the two is alleged. No appointment with the psychiatrist was obtained on that referral.

[76] On 15 May 2024 at 6:23 pm Ms Reese replied to the Appellant, copied to Ms Taylor and marked of High importance, stating that his email "did not demonstrate our iCARE2 value of Respect and did not comply with our Code of conduct". (Annexure A, Tab 9A)

[77] That reply of Ms Reese asked the Appellant to retract his email. (Annexure A, Tab 9A)

1.4 **Deterioration and first presentation.** The Appellant last worked a shift on 3 June 2024. On days in May 2024 and in the first week of June 2024 he drove to work, was unable to enter the building, and reported himself unfit from the car park. The date of injury recorded on the certificates is 18 June 2024. On 28 June 2024 (Dr Slawinski) the record shows "stress at work" and "upset by people not following rules", reason for visit anxiety. On 1 July 2024 (Dr Hawes) the record shows "work stress", "been there 5 years", that "they withhold pay at times, no overtime- not processed, manipulate his roster- so he works lates then earlies", and "causing anxiety". [Tab M1.] The events those records name are the matters admitted on 8 September 2026 and pleaded at Part B.2 below. The records are relied upon as the contemporaneous record of what was reported, before any claim decision, dismissal or proceeding; not as a finding of fact as to mechanism.

1.5 **Certification.** The work capacity certificates of Dr Hawes dated 1 July, 11 August and 8 September 2024, and of Dr Ki Pang dated 7 August 2024, state the date of injury as 18 June 2024, that the Appellant was first seen for this injury on 1 July 2024, and certify no functional capacity continuously from 1 July to 6 October 2024. The referral to a psychiatrist is recorded on the certificate of 8 September 2024. Review Decision 69983 records at page 17 that the certificate of 1 July 2024 indicated "there was no pre-existing factor or condition", and that "This was maintained in all later work capacity certificates". [Tab M2; Respondent's items 7 and 8.] The medication box is unticked on each certificate.

1.6 **Diagnosis, 24 October 2024.** At the first consultation, on the referral, the treating psychiatrist told the Appellant, and confirmed in writing at 11:45 am that day, that he was "suffering from psychological injury of Major Depressive Disorder with anxiety state"; that fluoxetine was increased to two capsules "from today" and Seroquel 25 mg commenced at night, "to restore basic needs- sleep, eating and routine". The Appellant's email of 5:12 pm that day reads "I have finally been able to see a psychiatrist today". [Tab M3; Respondent's item 9.] Read with 1.5, it records the progression from the injury certified as anxiety and stress on 1 July 2024 to a depressive disorder by 24 October 2024.

1.7 **The report of 13 February 2025.** Diagnosis: Major Depressive Disorder with anxious distress (DSM-5 296.23). Severity, functional effect and treatment (fluoxetine increased to three capsules daily; quetiapine 25 mg at night). The treating clinician records the origin as "workplace stress stemming from issues with management and rostering"; that the issues "began approximately one year ago when a new manager was appointed"; that pay was "withheld or delayed for up to five months at a time, leading to significant financial stress"; and that "premature exposure to the workplace is more likely result in significant deterioration". [Tab M4; Respondent's item 10.] The stressors so recorded correspond to matters admitted on 8 September 2026: management and rostering, and the night-shift line; the shorter break; and pay withheld or delayed from the 5 February 2024 fortnight, uncorrected at 13 May, "claims older than 3 months" on 28 May, a claim effective 30 March recorded "Part Completed" on 30 May, and the two February claims absent from the myHR report.

[211] On 26 April 2024 at 1:52 pm Ms Reese sent an email to the Appellant with the subject "Roster Concerns", referring to a meeting on 16 April 2024 at which the Appellant raised a roster line ending with night shifts followed by three days off and then returning to night shifts. (Annexure A, Tab 7)

[212] That email states that Ms Taylor "was working to fix this error and would get in touch with you about what alternative shifts she could offer". (Annexure A, Tab 7)

[220] That email states: "I acknowledge there has been a few rostering errors made by Chloe with regards to Cory's line in past rosters". (Annexure A, Tab 8)

[258] That decision states: "The break between the shift on 17 March 2024 and 18 March 2024 equated to 7 hours." (Annexure A, Tab 25)

[259] That decision states: "Even if you were allowed to leave early on 17 March 2024 as suggested by the employer, you left a maximum of 30 minutes early, which meant you still did not receive a minimum 8-hour break." (Annexure A, Tab 25)

[260] That decision states: "Based on this, I find the rostering of these two shifts amounted to unreasonable management action given that it was in direct contradiction to the award and the 8-hour agreement." (Annexure A, Tab 25)

[193] That message of 13 May 2024 states: "I cannot see that any of the issues below have been corrected. Please speak to your Line Manager to have them corrected with an AVAC submitted through My HR as this will also be affecting your RDO balances as well as your pay." (Annexure A, Tab 12)

[196] The Respondent's disclosure contains a message dated 28 May 2024 at 8:36 am from Ms C Taylor, addressed to the Appellant and copied to Ms T Reese, with the subject "Validation of Claims older than 3 months - Please sign". (Annexure A, Tab 14)

[197] That message of 28 May 2024 states: "Please find attached Validation of claims older than 3 months, please sign and return to be as soon as possible so I can escalate for delegate approval." (Annexure A, Tab 14)

[203] That report records a submission with process number 16450619 as an Attendance Variation and Allowance Claim submitted on 28 May 2024, with an effective date of 30 March 2024, a processing date of 30 May 2024, and a status of "Part Completed". (Annexure A, Tab 15)

[210] Neither AVAC PRN 15397775 nor AVAC PRN 15605601 appears in the myHR submissions report produced by Metro South Health as Item 11 of the notice of non-party disclosure. (Annexure A, Tab 15) PART FOUR - STRESSOR 3, INCLUDING THE ROSTERING ERRORS AND CHANGES FATIGUE BEFORE 18 JUNE 2024

1.8 **The report's footer, and the author's position.** The report bears a footer reading "for the only reason of clinical information and not for medico-legal use". The author's emails of 5 and 8 September 2026 state of his records "You can use them according to the need to support your legal issues", and identify the report of 13 February 2025 as "the report that captures the relevant information you have requested" on the matters in issue. [Tab M5.] The report is not relied upon for attribution among the individual events pleaded at Part B.2, nor for any matter after 24 October 2024 as a cause of the injury.

1.9 **Current capacity.** The Employee Capability Checklist completed by Dr Day Hong Ma on 3 July 2026 records current capacity and restrictions and the continuing effect of the injury, including "symptom exacerbation on exposure to the identified workplace stressors". [Tab M6.] Relied upon for effect and capacity only, not for causation; it post-dates 1 July 2024.

1.10 **Outstanding, and the finding in the decision under appeal.** The clinical records of the treating psychiatrist from 24 October 2024 were offered by the practice on 5 September 2026 and have been requested; they are not yet received and will be served on receipt. On the medical evidence then before it, the Respondent's review of 24 October 2024 found that the Appellant "sustained a personal injury of a psychological nature" and stated: "Having regard to the medical evidence, I am satisfied your employment was a significant contributing factor to the psychological injury". The claim was rejected under section 32(5), not section 32(1). [Tabs M7 and M9.] The hearing is de novo and that finding does not bind the Commission; it is relied upon as an admitted document.

[261] That decision states, under the heading "Conclusion": "you sustained a personal injury of a psychological nature". (Annexure A, Tab 25)

[262] That decision states, under the heading "Conclusion": "your injury arose out of employment, to the extent that it arose out of factors 2, 3 and 4, where employment was a significant contributing factor". (Annexure A, Tab 25)

## 2. Causative stressors (composite course, June 2023 – June 2024)

### Stressor 1 — the conditions in which the work was carried on

(a) **The directory, and the removal of the means of correcting it.** On 18 July 2023 access to the database was removed from all operators, the Contact and Number Changes book was taken out of the room, and an after-hours correction was to wait until one of two named persons returned. The Respondent does not allege access was restored before 18 June 2024. The duty to keep the information accurate remained on the position throughout. From 15 April 2024 the same two persons were also the after-hours contact, and from 14 May 2024 the same person was the route for notifying unavailability.

#### Duty engaged — the role description states:

[6] That role description states, as a key responsibility: "Collate information and maintain Omnivista database and SharePoint to ensure information held within Switchboard Services is accurate and appropriate". (Annexure A, Tab 1)

[7] That role description states, as a key responsibility: "Provide a service to support hospital staff in the allocation, coordination, and fault repair of all pager units for the hospital. This includes allocating pagers to hospital staff and submitting paging units for repair, maintaining database and registers with accurate and current information". (Annexure A, Tab 1)

[39] On 18 July 2023 at 12:56 pm Ms Ellen Stibbard, Switchboard Telecommunications Coordinator, sent an email to the Appellant and the Switchboard team, subject "Hello & Update", which states: "My current role is a project role for the Switchboard team. It is a temporary position that predominantly focuses on fixing up the database that switchboard utilises." (Annexure A, Tab 1A)

[40] That email states: "While I am fixing up the database and all of its entries, I will be removing everyone's access to the database." (Annexure A, Tab 1A)

[41] That email states that Ms Stibbard's working hours were "every Tuesday and second Monday, 8:00 - 16:00". (Annexure A, Tab 1A)

[42] That email states that a person wanting an entry updated was to "contact me directly, either via email or extension". (Annexure A, Tab 1A)

[43] That email states that if an entry was needed on a day Ms Stibbard was not present and was urgent, it was to be sent to Ms Taylor. (Annexure A, Tab 1A)

[44] That email states that a request made "after hours (overnights, on the weekend or public holiday)" would "have to wait until either Chloe or myself are back". (Annexure A, Tab 1A)

[45] That email states: "I have also removed the Contact & Number Changes book out of the room, as I would prefer, for now, to be sent all changes to my email." (Annexure A, Tab 1A)

[55] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that access to the database used by the Switchboard was restored to the Appellant at any time before 18 June 2024.

[49] On 15 April 2024 at 12:39 pm Ms Taylor sent an email to Logan Switch, copied to Ms Reese and to Switchboard staff including the Appellant, with the subject "Afterhours Oncall Process - Switchboard". (Annexure A, Tab 6)

[50] That email states: "Process during office hours remains the same, please contact myself through switch/office or mobile unless otherwise advised." (Annexure A, Tab 6)

[51] That email states: "This new process is effective from today." (Annexure A, Tab 6)

[52] That email states: "You will see that Ellen and myself have added Afterhours on call, the days that are highlighted in purple show who is on call after hours." (Annexure A, Tab 6)

[53] Ms Taylor signed that email as "A/Switchboard Manager". (Annexure A, Tab 6)

[54] Review Decision 69983 records: "On 19 April 2024, Ms Taylor emailed the team and expressed that due to errors being made with respect to data entry, a new process was to be followed which included more checks to ensure accuracy of data entry." (Annexure A, Tab 25)

[111] On 13 May 2024 at 4:29 pm Ms Ellen Stibbard sent an email to the Switchboard team, subject "Switchboard After Hours On Call Manager PP24 13/5/24 - 26/5/24", which states: "Just advising you that I am on call after hours for Switch from today Monday 13/5/24 – Sunday 19/5/24. Chloe will then be on call from Monday 20/5/24 – Sunday 26/5/24. During business hours you are to still contact Chloe." (Annexure A, Tab 8C)

[112] Ms Stibbard's on-call roster email of 13 May 2024 was addressed to the Switchboard team and included Mr Richard Parry among its recipients. (Annexure A, Tab 8C)

[113] Ms Taylor's email of 17 May 2024 at 9:30 am headed "Switchboard Manager - On call and Hours." included Mr Richard Parry among its recipients. (Annexure A, Tab 9)

[162] On 14 May 2024 at 12:08 pm Ms Taylor sent an email to the Appellant, copied to Ms Reese, with the subject "Sick leave 14.05.24", which states: "in business hours you are to follow the correct process and speak to me directly if its regarding emergent leave, you can contact me either through switch or my office/mobile." (Annexure A, Tab 10)

[163] The email of Ms Taylor of 15 April 2024 states that during office hours the Appellant was to contact her "through switch/office or mobile". (Annexure A, Tab 6)

[164] The email of Ms Taylor of 14 May 2024 at 12:08 pm states that the Appellant could contact her "either through switch or my office/mobile". (Annexure A, Tab 10)

[165] Each of those two emails identifies the Switchboard as a means by which the Appellant could contact Ms Taylor. (Annexure A, Tab 10)

[166] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Appellant was informed, at any time before 14 May 2024, that notifying his unavailability by telephoning the Switchboard did not comply with the process required of him.

[273] The Respondent's amended List of Documents dated 14 August 2026 does not list any document recording consultation with Switchboard operators before the change communicated by the email of 15 April 2024.

(b) **The Communication Book entry of 6 June 2023.** A reminder concerning the monthly update of medical contact numbers was removed. The Respondent admits the removal in its pleading and again on 8 September 2026, does not allege the page has been located or copied, and does not list the Communication Book.

**Duty engaged — the role description states:**

[9] That role description states, as a key responsibility: "Maintain discretion and exercise judgement where necessary to resolve problems within the scope of your role; in situations where precedence have not been set and procedures not defined". (Annexure A, Tab 1)

[143] The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 12(a): "admits that the Ms Taylor [sic] did remove pages from the Communication Book on or around 6 June 2023".

[144] That amended statement of facts and contentions states at paragraph 12(b): "says this event was reported from Ms Taylor to Ms Reese on 6 June 2023 via email".

[145] On 6 June 2023 at 4:05 pm Ms Taylor sent an email to Ms Reese with the subject "Fwd: Communication Book Update". (Annexure A, Tab 1B)

[146] That email states: "I was not aware of who put this entry in at the time but I took it out last week as it was clearly an indirect dig at the team and there is already a procedure to follow with this certain entry." (Annexure A, Tab 1B)

[147] That email states: "I just feel like it's being used as a 'burn book' more than a professional tool that switchboard can use to communicate." (Annexure A, Tab 1B)

[148] Beneath it in the same document is Ms Taylor's email to Logan Switch of 6 June 2023 at 9:57 am, subject "Communication Book Update", copied to Switchboard staff including the Appellant. (Annexure A, Tab 1B)

[149] That email of 9:57 am states: "This is not used to simply put your point across or make any indirect comments towards the team." (Annexure A, Tab 1B)

[150] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not identify the entry Ms Taylor removed from the Communication Book, or its author.

[151] That amended statement of facts and contentions, as presently constituted, does not allege that the removed page has been located, or that any copy of it exists.

[152] That amended statement of facts and contentions, as presently constituted, does not allege that any entry made by the Appellant remains in the Communication Book.

[153] That amended statement of facts and contentions, as presently constituted, does not allege that the Communication Book ceased to be in the possession of Metro South Hospital and Health Service at any time during the Appellant's employment.

[154] The Respondent's amended List of Documents dated 14 August 2026 does not list the Communication Book, nor any page or entry from it. **[NOT YET ADMITTED]**

(c) **The matters raised in August and September 2023, and the response.**

[26] On 7 August 2023 at 12:21 pm the Appellant sent an email to Ms Chloe Taylor, Ms Tammy Reese, Ms Patricia Conaghan and Ms Tracey Smith, marked of High importance, which states: "Furthermore, to meet the demands and the additional hours of the department both Patricia Conaghan and I would like to formally adhoc an additional 2 shifts per fortnight." (Annexure A, Tab 2)

[27] That email sets out clause 11.7 of the applicable agreement, headed "Additional Permanent Hours for Part-time Employees". (Annexure A, Tab 2)

[28] On 8 August 2023 at 4:15 pm Ms Reese sent an email to the Appellant which states: "With regards to an additional shift to replace the shift you did not work Monday due to a rostering error I believe Chloe offered you the shift tomorrow Wednesday 9th 0700-1500, thus can I ask if you are interested in picking up that shift? I believe you will then have 8 shifts this fortnight if you were to pick up that shift, thus can I ask were you looking for another shift on top of those 8 to replace the shift missed today also?" (Annexure A, Tab 2)

[29] On 8 August 2023 at 6:06 pm the Appellant sent an email to Ms Reese which states: "I can confirm that I will be in tomorrow 0700-1500 9th August. I was also looking to pick up another shift if possible." (Annexure A, Tab 2)

[30] On 31 August 2023 the Appellant provided to Ms Taylor a written application headed "Request to Increase Working Hours to Full Time Rotational Roster". (Annexure A, Tab 4)

[31] That application states: "I have also expressed my willingness to take on additional night shifts as part of the roster and advocacy to become a union representative for the switchboard department." (Annexure A, Tab 4)

[32] That application of 31 August 2023 records, in the same sentence, the Appellant's advocacy to become a union representative for the switchboard department and his willingness to take on additional night shifts. (Annexure A, Tab 4)

[33] On 4 September 2023 the Appellant sent an email to Ms Reese which states: "I confirm that I am able and willing to work any roster that is presented to me, including the current schedule with full 24-hour availability." (Annexure A, Tab 3)

[34] That email states: "I have no issues with shift work." (Annexure A, Tab 3)

[35] That email attached a draft roster spreadsheet prepared by the Appellant. (Annexure A, Tab 3)

[36] On 8 September 2023 at 11:42 am Ms Reese sent an email to the Appellant which states: "I am glad to hear things seem to be going well with Chloe and I am also glad to hear you applied for the additional shifts through the recent EOI." (Annexure A, Tab 3)

[37] On 27 September 2023 at 1:52 pm Ms Taylor sent an email to the Appellant with the subject "Approved - Permanent Full Time FTE" which states: "Just giving you an update on your application for Permanent Fulltime hours, I am very pleased to advise you that this has been approved." (Annexure A, Tab 5)

[38] That email states: "happy to commence Full-time hours from the 16th October 2023". (Annexure A, Tab 5) **PART TWO - STRESSOR 1 MATTERS RAISED IN MAY 2024**

[155] The Appellant's email of 7 August 2023 at 12:21 pm states: "Please give me some space and stop with any further communication as I have had enough of it." (Annexure A, Tab 2)

- [156] On 7 August 2023 at 1:43 pm Ms Taylor replied to the Appellant, copied to Ms Reese and Ms Smith, stating: "My sincere apologies about your rostered Monday 7th 0700-1500 shift, I can confirm this was an oversight." (Annexure A, Tab 4)
- [157] That email of Ms Taylor states: "Would you like me to roster you off tomorrow Tuesday 8th 0700-1500 to give you the required rest period". (Annexure A, Tab 4)
- [158] On 7 August 2023 at 3:13 pm Ms Reese replied to the Appellant stating: "As Chloe is your current line manager and as such you are required to continue to communicate with Chloe for work related issues, shift concerns, leave, etc." (Annexure A, Tab 2)
- [159] On 7 August 2023 at 5:11 pm Ms Reese sent an email to Ms Taylor attaching a document titled "Rostered shifts Cory S. past 8 months.xlsx", which states: "can I ask if you can send me an email of your recent communication with Cory about contacting yourself about missed shifts, as I could not find a copy of this email." (Annexure A, Tab 4)
- [160] On 29 August 2023 at 6:57 pm Ms Reese sent the Appellant an email attaching HR Policy E12 - Individual Employee Grievances, and setting out how a grievance could be submitted. (Annexure A, Tab 3)
- [161] On 4 September 2023 the Appellant replied to Ms Reese stating: "I have also spoken to Chloe. We are seemingly on the path to working in a beneficial way and hopefully will not need to go through this process." (Annexure A, Tab 3)

(d) **The special pandemic leave application, February 2024.** Submitted three times, declined twice, approved on the same material.

- [114] The myHR leave request history for Process Reference 15480560 records: "Employee - Cory Shepherd : created draft", 20.02.2024, 11:24:48. (Annexure A, Tab 28)
- [115] That history records: "Employee - Cory Shepherd : submitted request", 20.02.2024, 11:41:27. (Annexure A, Tab 28)
- [116] That history records: "Reviewer - Chloe Donovan-Taylor : declined request", 21.02.2024, 12:23:43. (Annexure A, Tab 28)
- [117] That history records: "Employee - Cory Shepherd : submitted request", 28.02.2024, 06:07:32. (Annexure A, Tab 28)
- [118] That history records: "Reviewer - Chloe Donovan-Taylor : declined request", 29.02.2024, 09:06:07. (Annexure A, Tab 28)
- [119] That history records: "Employee - Cory Shepherd : submitted request", 29.02.2024, 11:07:28. (Annexure A, Tab 28)
- [120] That history records: "Reviewer - Chloe Donovan-Taylor : approved request", 29.02.2024, 11:21:03. (Annexure A, Tab 28)
- [121] That history records: "Manager - Tammy Reese : approved request", 01.03.2024, 16:05:08. (Annexure A, Tab 28)
- [122] That history records the Appellant as having submitted the request on three occasions. (Annexure A, Tab 28)
- [123] That history records Ms Taylor as having declined the request on two occasions. (Annexure A, Tab 28)
- [124] The interval between the submission recorded at 11:07:28 on 29 February 2024 and the approval recorded at 11:21:03 on the same day is thirteen minutes and thirty-five seconds.
- [125] The interval between the draft recorded at 11:24:48 on 20 February 2024 and the approval recorded at 16:05:08 on 1 March 2024 is ten days, four hours, forty minutes and twenty seconds.
- [126] In that history Ms Taylor is identified as "Reviewer" and Ms Reese is identified as "Manager". (Annexure A, Tab 28)
- [127] The Instrument of Human Resource Sub-Delegation, COVID-19 Pandemic Event - Paid Special Pandemic Leave, signed by Ms Noelle Cridland as A/Health Service Chief Executive on 23 November 2022 and effective as at 5 December 2022, sub-delegates "the power to approve/not approve paid Special Pandemic Leave in accordance with Directives 05/17 and 01/20 respectively, for this pandemic event (COVID-19) only, to a Band 9 delegate". (Annexure A, Tab 29)
- [128] That Instrument states: "This Instrument does not permit the further sub-delegation of the powers outlined in (a) above." (Annexure A, Tab 29)
- [129] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that Ms Taylor was a Band 9 delegate at any time in February 2024.
- [130] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that Ms Reese was a Band 9 delegate at any time in February or March 2024.
- [131] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not identify the person who exercised the power sub-delegated by the Instrument of Human Resource Sub-Delegation in respect of Process Reference 15480560.
- [132] The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 14(c): "Ms Taylor asked the appellant to submit a Special Pandemic Leave request via MyHR and attach a statutory declaration or photo evidence of his test".
- [133] That amended statement of facts and contentions states at paragraph 14(d): "Ms Taylor did decline the application because on her assessment, the required statutory declaration was not attached to the MyHR submission. Ms Taylor asked the appellant to resubmit".
- [134] That amended statement of facts and contentions states at paragraph 14(e): "says that a review indicates that in fact, the attachments were present on the appellant's submission".
- [135] That amended statement of facts and contentions states at paragraph 14(f): "says this was a matter of human error by Ms Taylor on the background of high work demands surrounding the management of staff with COVID-19".
- [136] Review Decision 69983 records that on 20 February 2024 the Appellant messaged Ms Taylor stating he had tested positive for Covid, and that Ms Taylor "requested that you send it to her so she could submit it in MyHR". (Annexure A, Tab 25)
- [137] Review Decision 69983 records: "On 21 February 2024 Ms Taylor then messaged you and informed she had to decline your request in MyHR because the minimum period for Covid leave was 5 days for a positive staff member." (Annexure A, Tab 25)
- [138] That decision records that Ms Taylor "noted the statutory declaration you provided was sufficient evidence" and "requested for you to resubmit your leave days". (Annexure A, Tab 25)
- [139] That decision records that the Appellant "messaged you were confused about why your amended leave request was declined" and "noted you did everything as required". (Annexure A, Tab 25)
- [140] The myHR submissions report produced by Metro South Health as Item 11 of the notice of non-party disclosure records a Smart Leave Request with process number 15480560, submitted on 20 February 2024, with an effective date of 20 February 2024, a processing date of 1 March 2024, and a status of "Completed". (Annexure A, Tab 15)
- [141] That report records the initiator of that Smart Leave Request as the Appellant. (Annexure A, Tab 15)
- [142] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any other Switchboard employee was required to submit a Special Pandemic Leave request personally through myHR in February 2024.

(e) **The complaint of 13 May 2024.** The Appellant made a complaint to the Metro South Health Ethical Standards Unit, which that Unit determined on 24 December 2024 constituted a public interest disclosure, reference 24-ESU-1130. **The content is not set out, and no connection between it and any subsequent conduct is pleaded or relied upon in this appeal.**

**■ NOT IN THE NOTICE** — none of the 303 paragraphs refers to the Ethical Standards Unit, a public interest disclosure, or a complaint of 13 May 2024. To be proved from the Unit's determination and the Respondent's response of 18 February 2026 at Annexure A, Tab 27, or carried into a further notice to admit.]

(f) **The office hours, the retraction request, and the answer.** On 15 May 2024 the Appellant asked that directives and changes be made in consultation and asked for the manager's office hours. He was asked that evening to retract that email. Two days later the hours were sent to the whole department. On 21 May he was asked which particular changes or directives had concerned him.

Between 23 August 2023 and 17 May 2024 no fixed hours had been stated to staff. The Appellant pleads no characterisation of any person: the stated hours are pleaded because they determine how long an incorrect directory entry remained uncorrected.

**Duty engaged — the role description states:**

[3] That role description states: "This position reports to the Switchboard Manager, Corporate Services, Logan Hospital". (Annexure A, Tab 1)

[4] That role description names the contact for the position as "Chloe Taylor". (Annexure A, Tab 1)

[70] Review Decision 69983 records that in an email dated 23 August 2023 Ms Taylor "noted her start time would range between 6:00 to 9:00 am, and her finish time would range between 2:00 to 5:00 pm". (Annexure A, Tab 25)

[71] On 23 August 2023 at 2:18 pm Ms Taylor sent an email to Logan Switch, copied to Switchboard staff including the Appellant, with the subject "What's Chloe's Hours?!", which states: "I am fulltime and work flex hours - You may have noticed recently I am starting at different times in the morning and finish at different times in the afternoon." (Annexure A, Tab 30)

[72] That email states: "My hours would range from starting between 6-9am and finishing 2-5pm." (Annexure A, Tab 30)

[73] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that Ms Taylor stated fixed office hours to the Switchboard staff at any time between 23 August 2023 and 17 May 2024.

[74] On 15 May 2024 at 1:15 pm the Appellant sent an email to Ms Taylor and Logan Switch, copied to Switchboard staff, Ms Reese and LBH\_HR, with the subject "Office Hours and Departmental Directives", which states: "could you please share your office hours so the entire department can be aware of your regular schedule? There has been some noted inconsistency in your arrival and departure times". (Annexure A, Tab 9A)

[75] That email of the Appellant states: "please ensure that any directives and changes within the department is made in consultation with the team to ensure that any concerns can be appropriately addressed." (Annexure A, Tab 9A)

[76] On 15 May 2024 at 6:23 pm Ms Reese replied to the Appellant, copied to Ms Taylor and marked of High importance, stating that his email "did not demonstrate our iCARE2 value of Respect and did not comply with our Code of conduct". (Annexure A, Tab 9A)

[77] That reply of Ms Reese asked the Appellant to retract his email. (Annexure A, Tab 9A)

[78] On 15 May 2024 at 7:09 pm the Appellant replied to Ms Reese stating: "Requesting clarity on business hours is a reasonable question, especially when no one in the department can provide a definitive answer in response to directives to contact Chloe during office hours." (Annexure A, Tab 9A)

[79] On 21 May 2024 at 2:53 pm Ms Reese replied to the Appellant stating: "With regards to your concerns about having more clarity as to what are Chloe's business hours I will follow up on the issues raised." (Annexure A, Tab 9B)

[80] That reply of Ms Reese states: "can I ask was there one or more particular changes and/or directives where you had concerns about consultation and communication?" (Annexure A, Tab 9B)

[81] On 17 May 2024 at 9:30 am Ms Taylor sent an email to Logan Switch, copied to Ms Reese and to Switchboard staff, with the subject "Switchboard Manager - On call and Hours.", which states: "regardless of my start/finish times next week you are to please contact me through the day/afterhours either via switch, office or mobile." (Annexure A, Tab 9)

[82] That email states: "My office hours can vary due to having to take my girls to school in the morning, on the days that I do have school drop off I always let switch know that I will be in later between 0800-830am. Otherwise my hours are from 06:30-14:30." (Annexure A, Tab 9)

[83] That email of 17 May 2024 at 9:30 am states: "I will not be in the office until around 11am on Monday 20.05.2024". (Annexure A, Tab 9)

[84] That email states: "Moving forward so communication is clear for the team, I will be sending an email to switch to advise of any change to my office hours for the week." (Annexure A, Tab 9)

[85] On 18 June 2024 at 8:58 am Ms Taylor sent an email to Logan Switch, copied to Ms Reese and Ms Stibbard, with the subject "Good morning Team.", which states: "I am taking today off, and hopefully will be back tomorrow." (Annexure A, Tab 30A)

[86] That email of 18 June 2024 states: "I am sorry I haven't been there for you all over the past week." (Annexure A, Tab 30A)

[87] That email of 18 June 2024 states: "Ellen will not be in today, however Tammy is in the office if anything urgent." (Annexure A, Tab 30A)

[88] The office hours stated by Ms Taylor in her email of 17 May 2024 at 9:30 am concluded at 2:30 pm. (Annexure A, Tab 9)

(g) **Workplace representation.** The Appellant notified an interest in the Switchboard delegate role; the Union Encouragement Policy QH-POL-248 requires managers to take a positive, supportive role; he was endorsed as a workplace delegate on or about 3 November 2025. **No allegation of deliberate suppression is made.**

[178] On 3 November 2025 Mr Heath Moran, Organiser, Together Queensland, sent an email to Ms Carolyn Jeffrey, Ms Patricia Conaghan and the Appellant which states: "Firstly, congratulations to you all on being endorsed to become workplace delegates!" (Annexure A, Tab 24)

[179] The Appellant was endorsed as a workplace delegate on or about 3 November 2025. (Annexure A, Tab 24)

[180] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that agreement under clause 6.2 of the Hospital and Health Service General Employees (Queensland Health) Award - State 2015 was obtained before the rostering of the Appellant's shifts on 17 and 18 March 2024.

[181] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that a ballot of affected employees was conducted before the change to after-hours on-call arrangements notified by Ms Taylor on 15 April 2024. PART THREE - STRESSOR 2

[293] In that response the Respondent admitted that the Union Encouragement Policy QH-POL-248 "says words to that effect", the effect pleaded being that the Policy "requires managers to take a 'positive, supportive role' to facilitate union membership and delegate elections". (Annexure A, Tabs 26-27)

[294] In that response the Respondent admitted "that the Appellant sent a text to Ms Taylor at 5.03pm that he was 'just putting his hand up', and said that this was not a formal notification. (Annexure A, Tab 27)

(h) **What arrived at the console, and the obligation to consult.** On 3 and 8 May 2024 the MASPER Registrar reported nine occasions of calls reaching the wrong medical team; the first reply came five days, eighteen hours and fourteen minutes later and sought the reporting clinician's hours; nothing is alleged to have been sent to the Switchboard before 10:15 am on 9 May. On 15 and 20 May the Integrated Respiratory Service asked twice for a directory amendment and reported it could not assist patients; the Appellant escalated the cause within three hours and two minutes; no document of the discussion, no communication to the Service, no amendment and no notification to staff is listed. Clause 3.2 of the Queensland Public Health Sector Certified Agreement (No. 11) 2022 requires contribution to decision-making "not only in appearance, but in fact" and "an actual and genuine opportunity to influence the outcome, before a final decision is made"; the change of 15 April 2024 was effective the day it was notified.

**Duty engaged — the role description states:**

[8] That role description states, as a key responsibility: "Participate in the Emergency Response process by receiving emergency response notifications and distributing them to the appropriate response groups, dependent on the category of emergency, as per emergency code

procedures, strictly adhering to protocols and timeframes". (Annexure A, Tab 1)

[11] That role description states, as a key responsibility: "Ability to work effectively as an individual with limited supervision to meet deadlines and establish work priorities, and work as a member of a multi-disciplinary team in a changing environment". (Annexure A, Tab 1)

[12] That role description states, as a key responsibility: "Follow defined service quality standards, occupational health and safety policies and procedures relating to the work being undertaken to ensure high quality, safe services and workplaces". (Annexure A, Tab 1)

[56] On 3 May 2024 at 3:06 pm Vivian Kwok, MASPER Registrar, sent an email to Ms Taylor, copied to Dr Pan Jane Wong, with the subject "Switchboard issues 2nd and 3rd May 2024", which states: "I've been requested to email you with the list of switchboard issues from yesterday and today". (Annexure A, Tab 8B)

[57] That email lists five occasions on 2 and 3 May 2024, being 2 May 2024 at 14:47, and 3 May 2024 at 10:00 am, 10:22 am, 11:43 am and 14:46. (Annexure A, Tab 8B)

[58] That email records of the occasion at 14:46 on 3 May 2024: "MET call team called x5290 asking where MET call was located 'VHUB' - switchboard could not tell them where VHUB was. Had to be redirected by MASPER". (Annexure A, Tab 8B)

[59] On 8 May 2024 at 5:28 pm Vivian Kwok sent a further email to Ms Taylor, copied to Dr Wong, with the subject "Re: Switchboard issues 5 May, 7 May, and 8 May", which states: "Here are the switchboard issues 5th May to 8th of May". (Annexure A, Tab 8B)

[60] That further email lists four occasions, being 5 May 2024 at 14:45, 7 May 2024 at 0745, and 8 May 2024 at 8:53 am and 9:59 am. (Annexure A, Tab 8B)

[61] That further email records of the occasions on 8 May 2024 that a call was "incorrectly put through to MASPER" on each occasion. (Annexure A, Tab 8B)

[62] The email of Vivian Kwok of 8 May 2024 was sent on the fifth calendar day after her email of 3 May 2024.

[63] The email of Ms Taylor of 9 May 2024 at 9:20 am was sent on the sixth calendar day after the email of Vivian Kwok of 3 May 2024 at 3:06 pm.

[64] The interval between the email of Vivian Kwok of 3 May 2024 at 3:06 pm and the email of Ms Taylor of 9 May 2024 at 9:20 am is five days, eighteen hours and fourteen minutes.

[65] On 9 May 2024 at 9:20 am Ms Taylor sent an email to Vivian Kwok, MASPER Registrar, and Dr Pan Jane Wong, subject "RE: Switchboard issues 5 May, 7 May, and 8 May", which states: "@Pan Jane Wong Can I please confirm your business hours so we can have this for our reference, it is not provided on the rosters. I have noticed your dect phone number #5997 is currently switched off." (Annexure A, Tab 8B)

[66] On 9 May 2024 at 10:15 am Ms Taylor sent an email to Logan Switch, copied to Switchboard staff including the Appellant, subject "MASPER process", which states: "To try and eliminate this can I please ask that all calls that switch transfer to the MASPER phone #5223 are being introduced." (Annexure A, Tab 8B)

[67] Ms Taylor's email to Logan Switch of 9 May 2024 at 10:15 am states: "I have included below email trail for your reference. There have been many ongoing issues raised by the MASPER and the medical department about calls being transferred to the wrong medical teams." (Annexure A, Tab 8B)

[68] The occasions reported by Vivian Kwok on 3 and 8 May 2024 occurred while the after-hours on-call arrangement notified by Ms Taylor on 15 April 2024 was in force.

[69] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any communication was sent to Logan Switch or to the Switchboard staff concerning the occasions reported by Vivian Kwok at any time after 3 May 2024 and before 10:15 am on 9 May 2024.

[89] On 15 May 2024 at 11:47 am Ms Sue Marriott, Administration Officer, Integrated Respiratory Service, sent an email to Logan Switch, marked of High importance, which states: "Could you please amend your number registry/directory to show #8768 belongs to the Integrated Respiratory Service... We are not Respiratory Medical OPD and we do not have any doctors working out of this area." (Annexure A, Tab 11)

[90] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any response was made to the email of Ms Marriott of 15 May 2024 at 11:47 am at any time before 20 May 2024.

[91] On 20 May 2024 at 11:03 am Ms Marriott sent a further email to Logan Switch, marked of High importance, which states: "Just a courtesy reminder, we continue to get calls put through to us for Respiratory Medical Outpatients... we can not help patients or other clinical staff with OPD issues." (Annexure A, Tab 11)

[92] The email of Ms Marriott of 20 May 2024 at 11:03 am was sent on the fifth calendar day after her email of 15 May 2024 at 11:47 am. (Annexure A, Tab 11)

[93] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any response was made to the email of Ms Marriott of 20 May 2024 at 11:03 am before 2:05 pm on that day.

[94] On 20 May 2024 at 2:05 pm the Appellant sent an email to Ms Taylor, marked of High importance, which states: "switchboard staff may not be aware of the clinics due to modifications to the Document: Outpatients Department - Clinic contact Details. on the 22nd of February 2024. I recommend a modification and review of the document." (Annexure A, Tab 11)

[95] That email of the Appellant was sent from the Logan Switch account. (Annexure A, Tab 11)

[96] That email of the Appellant was sent within the office hours Ms Taylor had stated to all Switchboard staff on 17 May 2024. (Annexure A, Tab 9)

[97] The Appellant's email of 20 May 2024 at 2:05 pm was sent three hours and two minutes after the email of Ms Marriott of that day at 11:03 am.

[98] The Appellant's email of 20 May 2024 at 2:05 pm was sent five days, two hours and eighteen minutes after the first email of Ms Marriott of 15 May 2024 at 11:47 am.

[99] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Appellant was rostered to work after 2:05 pm on 20 May 2024.

[100] On 20 May 2024 at 4:30 pm Ms Taylor replied to the Appellant, stating: "Thank you for bringing this to my attention however this task was being actioned. I had discussed with Richard this morning about the update of outpatients respiratory/medical." (Annexure A, Tab 11)

[101] That reply of Ms Taylor states: "Taking note of your recommendation, we can also put the updated procedures out to the team for consultation before implementing." (Annexure A, Tab 11)

[102] Ms Taylor's reply of 20 May 2024 at 4:30 pm was sent two hours and twenty-five minutes after the Appellant's email of that day at 2:05 pm.

[103] That reply of Ms Taylor was sent two hours after the conclusion of the office hours she had stated to all Switchboard staff on 17 May 2024. (Annexure A, Tab 9)

[104] Ms Taylor's reply of 20 May 2024 at 4:30 pm states that the matter had been discussed "this morning", being the morning of 20 May 2024. (Annexure A, Tab 11)

[105] The Respondent's amended List of Documents dated 14 August 2026 does not list any document created on 20 May 2024 recording the discussion referred to in that reply.

[106] The Respondent's amended List of Documents dated 14 August 2026 does not list any document recording a communication sent by Ms Taylor to Ms Marriott, or to the Integrated Respiratory Service, on 20 May 2024.

[107] The Respondent's amended List of Documents dated 14 August 2026 does not list any document recording a communication sent by Mr Parry to Ms Marriott, or to the Integrated Respiratory Service, on 20 May 2024.

[108] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that Mr Parry communicated with Ms Marriott, or with the Integrated Respiratory Service, on 20 May 2024.

[109] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the document "Outpatients Department - Clinic contact Details" was amended at any time on or before 20 May 2024.

[110] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Switchboard staff were notified, at any time on or before 20 May 2024, of the modifications made to the document "Outpatients Department - Clinic contact Details" on 22 February 2024.

[167] The Consultation outcome - Proposed Rosters for Switchboard Services, Logan Hospital, December 2024, states: "In accordance with Clause 6.2 of the Hospital and Health Service General Employees (Queensland Health) Award - State 2015, agreement between MSH and the union, or MSH and the majority of employees affected must occur prior to changes to a shift roster." (Annexure A, Tab 23)

[168] That document states: "Agreement is defined as obtaining consent from the majority (50+1%) of affected employees, with all affected employees invited to cast their vote via an online Ballot Form." (Annexure A, Tab 23)

[169] The Consultation Paper - Proposed Rosters for Switchboard Services, Logan Hospital states: "On 22 July 2021, Metro South Health (MSH) management, affected staff and Together Queensland representatives commenced negotiating a new roster for Switchboard Services, Logan Hospital." (Annexure A, Tab 22)

[170] That Consultation Paper states: "In August 2024, Switchboard Services, Logan Hospital was realigned from Health Information Management Services (HIMS), MSH to Corporate Services, LBHS, MSH." (Annexure A, Tab 22)

[171] That Consultation Paper states that the proposed roster "is intended to introduce a more equitable roster for Switchboard Services, Logan Hospital staff". (Annexure A, Tab 22)

[172] That Consultation Paper states that the proposed roster includes: "Redistribution of nights for greater equity based on FTE." (Annexure A, Tab 22)

[173] That Consultation Paper states that the proposed roster includes: "Rotational roster for predictability and equity to all staff ensuring fair distribution of penalties." (Annexure A, Tab 22)

[174] That Consultation Paper states that the proposed roster includes: "An additional eight (8) hour shift (0700-1500) on Saturdays, to assist with call volume." (Annexure A, Tab 22)

[175] That Consultation Paper states that the proposed roster includes: "Extension of the current weekday (Mon-Fri) 0900-1400 five (5) hour shift to a 0700-1500 eight (8) hour shift." (Annexure A, Tab 22)

[176] The Consultation outcome document states that on 14 November 2024 a consultation document and proposed roster for Switchboard Services, Logan Hospital was released for consultation, and that affected staff, unions and stakeholders were invited to provide feedback by 8 December 2024. (Annexure A, Tab 23)

[177] That document states that seventeen affected employees were invited to cast a vote, that seventeen votes were received, that fourteen "Yes" votes and three "No" votes were received, and that the proposed rosters were approved with a date effective of 20 January 2025. (Annexure A, Tab 23)

[178] On 3 November 2025 Mr Heath Moran, Organiser, Together Queensland, sent an email to Ms Carolyn Jeffrey, Ms Patricia Conaghan and the Appellant which states: "Firstly, congratulations to you all on being endorsed to become workplace delegates!" (Annexure A, Tab 24)

[179] The Appellant was endorsed as a workplace delegate on or about 3 November 2025. (Annexure A, Tab 24)

[180] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that agreement under clause 6.2 of the Hospital and Health Service General Employees (Queensland Health) Award - State 2015 was obtained before the rostering of the Appellant's shifts on 17 and 18 March 2024.

[181] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that a ballot of affected employees was conducted before the change to after-hours on-call arrangements notified by Ms Taylor on 15 April 2024. PART THREE - STRESSOR 2

[101] That reply of Ms Taylor states: "Taking note of your recommendation, we can also put the updated procedures out to the team for consultation before implementing." (Annexure A, Tab 11)

**(i) What the employer states about its own systems.**

[263] By letter dated 5 June 2026, reference K-LM26/729, signed by Ms Noelle Cridland as Chief Executive of Metro South Hospital and Health Service and addressed to Commissioner Dwyer, Metro South Health stated in relation to Item 4: "the requested documents do not exist. Mandatory Fatigue Risk Management System training only applies to health practitioners and clinical assistants. The Logan Hospital Switchboard staff are non-clinical staff, and therefore there is no mandatory requirement for them to complete Fatigue Risk Management System training." (Annexure A, Tab 20)

[264] That letter states in relation to Item 5: "The implementation of fatigue risk management assessment at Switchboard Logan Hospital occurred after 30 June 2024 in connection with an organisational change related to the reporting lines for Switchboard." (Annexure A, Tab 20)

[265] That letter states in relation to Item 7: "the requested documents do not exist. Mandatory Fatigue Risk Management System training only applies to health practitioners and clinical assistants." (Annexure A, Tab 20)

[266] That letter states in relation to Item 3(c): "there have been no 'consequential' changes to operating procedures over the period requested." (Annexure A, Tab 20)

[267] That letter states in relation to Item 3(a): "All employee complaints relating to Logan Hospital Switchboard operational errors are made directly to the Line Manager of Switch Board and managed solely via email or verbally with the complainant." (Annexure A, Tab 20)

[268] That letter states in relation to Items 1 and 2: "a spreadsheet of recorded MET calls is available for the period 17-18 March 2024." (Annexure A, Tab 20) PART FIVE - GENERAL: THE RECORD, THE ADMISSIONS AND THE MATTERS NOT ALLEGED

[269] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any fatigue risk assessment was conducted in respect of the Appellant's position at any time before 30 June 2024.

[270] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any fatigue risk management training was provided to the Appellant in respect of his position at any time before 30 June 2024.

[271] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that fatigue risk management assessment was implemented at Logan Hospital Switchboard at any time before 30 June 2024.

[272] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any change was made to the operating procedures of Logan Hospital Switchboard as a consequence of any employee complaint over the period 1 December 2023 to 30 June 2024.

## Stressor 2 — remuneration

(a) Between February and May 2024 the Appellant's pay required correction. On 3 May 2024 Payroll identified four fortnights and asked the manager to submit an Attendance Variation and Allowance Claim for each; on 13 May Payroll directed the Appellant to his line manager; on 21 May the manager was awaiting payroll confirmation; on 28 May the Appellant was asked to sign a validation of claims older than three months. The myHR submissions report records the manager as the initiator of each of the five such claims in the period and the Appellant as the initiator of none.

(a1) **Public holidays on which the Appellant was not required to work.** Section 23 of the Hospital and Health Service General Employees (Queensland Health) Award provides that where an employee in receipt of the additional week's leave prescribed by clause 19.2(a) is rostered off on Easter Saturday, Easter Sunday, Show Day or Labour Day, that employee is to be paid an additional day's wage or granted a day's holiday in lieu. The Appellant was rostered off on public holidays between February and April 2024. As at 1 May 2024 payroll was still reviewing his entitlements regarding public holidays not required, while the manager confirmed that since his commencement of full-time employment all payments for public holidays not required had been processed.

[241] That decision records that section 23 of the Hospital and Health Service General Employees (Queensland Health) Award provides that "where an employee is in receipt of the additional week's leave as prescribed in clause 19.2(a) and is rostered off on Easter Saturday, Easter Sunday, Show Day or Labour Day, such employee shall be paid an additional day's wage or be granted a day's holiday in lieu at a time to be mutually arranged, but this is not applicable where an employee is not ordinarily required to work on a Saturday or Sunday". (Annexure A, Tab 25) MAY 2024

[255] That decision records that payroll was, as at 1 May 2024, "still reviewing your entitlements regarding public holidays not required arising while you were a part-time employee". (Annexure A, Tab 25)

[256] That decision records Ms Taylor as confirming "that since your commencement of full-time employment, all payments for public holidays not required had been processed". (Annexure A, Tab 25)

(a2) **Rostering practices.** On 20 May 2024 the Director wrote to LBH\_HR following up a query raised in relation to an email received from a staff member about the department's rostering practices, attaching the Queensland Health Fatigue Risk Management Systems Implementation Guideline.

[222] On 20 May 2024 at 4:07 pm Ms Reese sent an email to LBH\_HR which states: "I am just following up on this query I raised a little while ago in relation to a email I had received from a staff member about our rostering practices. Thus if someone might be able to give me a call regarding these staff concerns, that would be great." (Annexure A, Tab 8)

[223] That email of Ms Reese to LBH\_HR attached the document "qh-gdl-401-3.3", being the Queensland Health Fatigue Risk Management Systems Implementation Guideline. (Annexure A, Tab 8A) MARCH 2024

### Duty engaged — the role description states:

[2] That role description states: "The occupant of this position is required to work continuous shift work over the full 24-hour period, 7 days a week". (Annexure A, Tab 1)

[13] That role description states, under mandatory requirements: "The position is a continuous shift working role. You must be able to work a roster which covers multiple shifts over a 24/7 period". (Annexure A, Tab 1)

[182] The Respondent's disclosure contains an email thread with the subject "Corey Shepherd 388372 Pay issues". (Annexure A, Tab 12)

[183] The first message in that thread is dated 3 May 2024, is from PayrollMetroSouth, is addressed to Ms C Taylor, and is copied to the Appellant. (Annexure A, Tab 12)

[184] That message bears the signature block of Elaine Grant, Client Service Officer, Metro South Payroll Team, Payroll Transactional Services. (Annexure A, Tab 12)

[185] That message states: "Corey has wages top up on fortnight 05.02.24 for 0.95mins as he is under his contracted hours so it is topping up the missing wages from his RDO balance." (Annexure A, Tab 12)

[186] That message states: "This will be due to having a 7hr shift on 09.02.24 instead of an 8hr shift. AVAC PRN 15397775." (Annexure A, Tab 12)

[187] That message states: "The same has happened for the next fortnight 19.02.24 due to 28.02.24 shift AVAC PRN 15605601 has this shift as 7hrs topping up 0.95 for missing hour." (Annexure A, Tab 12)

[188] That message states: "Fortnight 18.03.24 is the opposite and has too many ordinary shifts for the fortnight resulting in wage reduction of 7.55hrs as one of the shifts needs to be overtime." (Annexure A, Tab 12)

[189] That message states: "Fortnight 01.04.24 is the same, 0.95hrs over contracted 76hrs needs to be overtime." (Annexure A, Tab 12)

[190] That message states: "Please submit an AVAC to correct these shifts for each fortnight so Cory is paid corrected and his RDO balance will then be amended." (Annexure A, Tab 12)

[191] The thread contains a message dated 10 May 2024 at 2:21 pm from the Appellant, addressed to PayrollMetroSouth and to Ms E Grant. (Annexure A, Tab 12)

[192] The thread contains a message dated 13 May 2024 at 8:21 am from PayrollMetroSouth, addressed to the Appellant. (Annexure A, Tab 12)

[193] That message of 13 May 2024 states: "I cannot see that any of the issues below have been corrected. Please speak to your Line Manager to have them corrected with an AVAC submitted through My HR as this will also be affecting your RDO balances as well as your pay." (Annexure A, Tab 12)

[194] The thread contains a message dated 21 May 2024 at 12:33 pm from Ms C Taylor, addressed to the Appellant, with the subject "RE: Corey Shepherd 388372 Pay issues". (Annexure A, Tab 13)

[195] That message of 21 May 2024 states: "Just letting you know that I am still I am waiting payroll confirmation about a few of these payroll issues and as soon as I do get that confirmation, I will submit an AVAC for next pay run. I will let you know PRN once it has been submitted." (Annexure A, Tab 13)

[196] The Respondent's disclosure contains a message dated 28 May 2024 at 8:36 am from Ms C Taylor, addressed to the Appellant and copied to Ms T Reese, with the subject "Validation of Claims older than 3 months - Please sign". (Annexure A, Tab 14)

[197] That message of 28 May 2024 states: "Please find attached Validation of claims older than 3 months, please sign and return to be as soon as possible so I can escalate for delegate approval." (Annexure A, Tab 14)

[198] The myHR submissions report produced by Metro South Health as Item 11 of the notice of non-party disclosure records seven submissions for the Appellant in the period 1 February 2024 to 31 May 2024. (Annexure A, Tab 15)

[199] That report records five of those seven submissions as an "Attendance Variation and Allowance Claim (AVAC)". (Annexure A, Tab 15)

[200] That report records the initiator of each of those five Attendance Variation and Allowance Claims as "Donovan-Taylor, Chloe". (Annexure A, Tab 15)

[201] That report records the initiator of no Attendance Variation and Allowance Claim in that period as the Appellant. (Annexure A, Tab 15)

[202] That report records a submission with process number 16328886 as an Attendance Variation and Allowance Claim submitted on 15 May 2024, with a processing date of 16 May 2024, and a status of "Completed". (Annexure A, Tab 15)

[203] That report records a submission with process number 16450619 as an Attendance Variation and Allowance Claim submitted on 28 May 2024, with an effective date of 30 March 2024, a processing date of 30 May 2024, and a status of "Part Completed". (Annexure A, Tab 15)

[204] That report records the status of every other Attendance Variation and Allowance Claim in the period as "Completed". (Annexure A, Tab 15)

[205] That report records the following process numbers with the following submission dates: 15325947, submitted 6 February 2024; 15480560, submitted 20 February 2024; 15848692, submitted 27 March 2024; 15849573, submitted 27 March 2024; 15969838, submitted 9 April 2024; 16328886, submitted 15 May 2024; and 16450619, submitted 28 May 2024. (Annexure A, Tab 15)

[206] In that report, process numbers increase as submission dates increase. (Annexure A, Tab 15)

(b) The Respondent pleads that any discrepancies were remedied in a timely manner and that there are no outstanding underpayments. The claim submitted on 28 May 2024 is recorded as "Part Completed", and neither claim reference identified by Payroll on 3 May 2024 appears in the report.

[203] That report records a submission with process number 16450619 as an Attendance Variation and Allowance Claim submitted on 28 May 2024, with an effective date of 30 March 2024, a processing date of 30 May 2024, and a status of "Part Completed". (Annexure A, Tab 15)

[204] That report records the status of every other Attendance Variation and Allowance Claim in the period as "Completed". (Annexure A, Tab 15)

[207] The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 20(c): "any discrepancies or errors were remedied in a timely manner".

[208] That amended statement of facts and contentions states at paragraph 20(f): "there are no outstanding underpayments for the appellant".

[209] That amended statement of facts and contentions states at paragraph 21(c): "says Ms Taylor submitted the AVAC on 28 May 2024".

[210] Neither AVAC PRN 15397775 nor AVAC PRN 15605601 appears in the myHR submissions report produced by Metro South Health as Item 11 of the notice of non-party disclosure. (Annexure A, Tab 15) PART FOUR - STRESSOR 3, INCLUDING THE ROSTERING ERRORS AND CHANGES FATIGUE BEFORE 18 JUNE 2024

**■ CORRECTIONS TO THE AMENDED FORM 9A OF 7 APRIL 2026 — (i) the word "IMMEDIATELY" does not appear in the Payroll instruction of 3 May 2024; paragraph 195 records "Please submit an AVAC to correct these shifts for each fortnight". (ii) The "42% pay disparity" is not supported by any paragraph of the notice and must be proved by evidence or withdrawn. (iii) The "admitted 25-day delay" is not a paragraph of the notice; the dates of 3 May and 28 May 2024 are admitted and the interval is arithmetic.]**

### Stressor 3 — the roster and fatigue

(a) Rostering errors on the Appellant's line were acknowledged in writing by the Director. On 10 May 2024 she wrote to Human Resources that the Appellant's roster would not be considered and that he was not yet aware of it. On 21 May she asked him to identify the changes and directives about which he had concerns.

#### Duty engaged — the role description states:

[2] That role description states: "The occupant of this position is required to work continuous shift work over the full 24-hour period, 7 days a week". (Annexure A, Tab 1)

[13] That role description states, under mandatory requirements: "The position is a continuous shift working role. You must be able to work a roster which covers multiple shifts over a 24/7 period". (Annexure A, Tab 1)

[211] On 26 April 2024 at 1:52 pm Ms Reese sent an email to the Appellant with the subject "Roster Concerns", referring to a meeting on 16 April 2024 at which the Appellant raised a roster line ending with night shifts followed by three days off and then returning to night shifts. (Annexure A, Tab 7)

[212] That email states that Ms Taylor "was working to fix this error and would get in touch with you about what alternative shifts she could offer". (Annexure A, Tab 7)

[213] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that Ms Taylor got in touch with the Appellant about alternative shifts following the meeting of 16 April 2024.

[214] On 1 May 2024 at 1:18 pm the Appellant sent an email to Ms Reese with the subject "Re: Roster Concerns" referring to section 4, clause 10.4.1 of the Operations Manual and stating: "This section includes a toolkit required by management to manage fatigue and implement appropriate protocols and adhere to the workplace health and safety act." (Annexure A, Tab 7)

[215] That email states: "I forwarded the toolkit to Chloe last week for review and action but have yet to receive feedback". (Annexure A, Tab 7)

[216] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that Ms Taylor reviewed the toolkit referred to in that email, or provided any feedback on it, at any time before 18 June 2024.

[217] On 8 May 2024 at 9:08 am Ms Reese replied to the Appellant stating: "Thanks for raising these observations and concerns. I am following up with regards to these with HR for further advice and I will get back to you asap with a response." (Annexure A, Tab 7)

[218] On 10 May 2024 at 2:08 pm Ms Reese sent an email to Mr Mackenzie Pritchard of Human Resources forwarding the Appellant's email of 1 May 2024, which states: "I think he is trying to raise that he has concerns over how his manager is rostering for the Switchboard team and how it is impacting on staff fatigue, or more specifically his fatigue." (Annexure A, Tab 8)

[219] That email states: "as per Cory's second extract detailing the Roster Risk assessment Matrix, Chloe and I have run through this and we say at best there would be a rating of 11 which is moderate". (Annexure A, Tab 8)

[220] That email states: "I acknowledge there has been a few rostering errors made by Chloe with regards to Cory's line in past rosters". (Annexure A, Tab 8)

[221] That email of Ms Reese to Mr Mackenzie Pritchard of 10 May 2024 states: "Cory's roster will not be considered, however Cory is not yet aware of this as we cannot advise what is the roster we are planning on going with before we send out the implementation plan for this business case for change". (Annexure A, Tab 8)

[222] On 20 May 2024 at 4:07 pm Ms Reese sent an email to LBH\_HR which states: "I am just following up on this query I raised a little while ago in relation to a email I had received from a staff member about our rostering practices. Thus if someone might be able to give me a call regarding these staff concerns, that would be great." (Annexure A, Tab 8)

[223] That email of Ms Reese to LBH\_HR attached the document "qh-gdl-401-3.3", being the Queensland Health Fatigue Risk Management Systems Implementation Guideline. (Annexure A, Tab 8A) MARCH 2024

(a1) **The rostering history.** A rostering error in August 2023 was acknowledged by the manager, who offered to roster the Appellant off the following day "to give you the required rest period", and by the Director, who accepted there had been "a rostering error that was accidentally" made. The Appellant applied in writing to increase his hours to a full-time rotational roster, confirmed he was able

and willing to work any roster presented to him including the full 24-hour rotational schedule, expressed willingness to take on additional night shifts, and provided a draft roster spreadsheet. In November and December 2024 the employer released a Consultation Paper and outcome proposing a more equitable roster with redistribution of nights based on FTE and a rotational roster ensuring fair distribution of penalties.

[28] On 8 August 2023 at 4:15 pm Ms Reese sent an email to the Appellant which states: "With regards to an additional shift to replace the shift you did not work Monday due to a rostering error I believe Chloe offered you the shift tomorrow Wednesday 9th 0700-1500, thus can I ask if you are interested in picking up that shift? I believe you will then have 8 shifts this fortnight if you were to pick up that shift, thus can I ask were you looking for another shift on top of those 8 to replace the shift missed today also?" (Annexure A, Tab 2)

[30] On 31 August 2023 the Appellant provided to Ms Taylor a written application headed "Request to Increase Working Hours to Full Time Rotational Roster". (Annexure A, Tab 4)

[31] That application states: "I have also expressed my willingness to take on additional night shifts as part of the roster and advocacy to become a union representative for the switchboard department." (Annexure A, Tab 4)

[33] On 4 September 2023 the Appellant sent an email to Ms Reese which states: "I confirm that I am able and willing to work any roster that is presented to me, including the current schedule with full 24-hour availability." (Annexure A, Tab 3)

[35] That email attached a draft roster spreadsheet prepared by the Appellant. (Annexure A, Tab 3)

[156] On 7 August 2023 at 1:43 pm Ms Taylor replied to the Appellant, copied to Ms Reese and Ms Smith, stating: "My sincere apologies about your rostered Monday 7th 0700-1500 shift, I can confirm this was an oversight." (Annexure A, Tab 4)

[157] That email of Ms Taylor states: "Would you like me to roster you off tomorrow Tuesday 8th 0700-1500 to give you the required rest period". (Annexure A, Tab 4)

[159] On 7 August 2023 at 5:11 pm Ms Reese sent an email to Ms Taylor attaching a document titled "Rostered shifts Cory S. past 8 months.xlsx", which states: "can I ask if you can send me an email of your recent communication with Cory about contacting yourself about missed shifts, as I could not find a copy of this email." (Annexure A, Tab 4)

[287] In that response the Respondent admitted paragraph 5 of that notice, being that Ms Reese stated in an email dated 7 August 2023: "I do realise in this instance there was a rostering error that was accidentally made by Chloe with regards to night shifts". (Annexure A, Tabs 26-27)

[167] The Consultation outcome - Proposed Rosters for Switchboard Services, Logan Hospital, December 2024, states: "In accordance with Clause 6.2 of the Hospital and Health Service General Employees (Queensland Health) Award - State 2015, agreement between MSH and the union, or MSH and the majority of employees affected must occur prior to changes to a shift roster." (Annexure A, Tab 23)

[168] That document states: "Agreement is defined as obtaining consent from the majority (50+1%) of affected employees, with all affected employees invited to cast their vote via an online Ballot Form." (Annexure A, Tab 23)

[169] The Consultation Paper - Proposed Rosters for Switchboard Services, Logan Hospital states: "On 22 July 2021, Metro South Health (MSH) management, affected staff and Together Queensland representatives commenced negotiating a new roster for Switchboard Services, Logan Hospital." (Annexure A, Tab 22)

[170] That Consultation Paper states: "In August 2024, Switchboard Services, Logan Hospital was realigned from Health Information Management Services (HIMS), MSH to Corporate Services, LBHS, MSH." (Annexure A, Tab 22)

[171] That Consultation Paper states that the proposed roster "is intended to introduce a more equitable roster for Switchboard Services, Logan Hospital staff". (Annexure A, Tab 22)

[172] That Consultation Paper states that the proposed roster includes: "Redistribution of nights for greater equity based on FTE." (Annexure A, Tab 22)

[173] That Consultation Paper states that the proposed roster includes: "Rotational roster for predictability and equity to all staff ensuring fair distribution of penalties." (Annexure A, Tab 22)

[174] That Consultation Paper states that the proposed roster includes: "An additional eight (8) hour shift (0700-1500) on Saturdays, to assist with call volume." (Annexure A, Tab 22)

[175] That Consultation Paper states that the proposed roster includes: "Extension of the current weekday (Mon-Fri) 0900-1400 five (5) hour shift to a 0700-1500 eight (8) hour shift." (Annexure A, Tab 22)

[176] The Consultation outcome document states that on 14 November 2024 a consultation document and proposed roster for Switchboard Services, Logan Hospital was released for consultation, and that affected staff, unions and stakeholders were invited to provide feedback by 8 December 2024. (Annexure A, Tab 23)

[177] That document states that seventeen affected employees were invited to cast a vote, that seventeen votes were received, that fourteen "Yes" votes and three "No" votes were received, and that the proposed rosters were approved with a date effective of 20 January 2025. (Annexure A, Tab 23)

[178] On 3 November 2025 Mr Heath Moran, Organiser, Together Queensland, sent an email to Ms Carolyn Jeffrey, Ms Patricia Conaghan and the Appellant which states: "Firstly, congratulations to you all on being endorsed to become workplace delegates!" (Annexure A, Tab 24)

[179] The Appellant was endorsed as a workplace delegate on or about 3 November 2025. (Annexure A, Tab 24)

[180] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that agreement under clause 6.2 of the Hospital and Health Service General Employees (Queensland Health) Award - State 2015 was obtained before the rostering of the Appellant's shifts on 17 and 18 March 2024.

[181] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that a ballot of affected employees was conducted before the change to after-hours on-call arrangements notified by Ms Taylor on 15 April 2024. PART THREE - STRESSOR 2

(b) The shifts of 17 and 18 March 2024 were separated by a seven-hour break. The Award requires a break of not less than ten hours, and eight hours applies instead of ten only in specific circumstances. The 8-hour agreement of 17 June 2020 applies only where staff-initiated shift swaps have occurred, and the Respondent does not allege these shifts arose from such a swap.

[17] The Appellant signed an agreement allowing an 8-hour break between shifts on 17 June 2020. (Annexure A, Tab 25)

[18] Review Decision 69983 of the Workers' Compensation Regulator, dated 24 October 2024, records the Appellant's submission that the 8-hour agreement "was no longer fit for purpose since your transition from casual employment to full-time". (Annexure A, Tab 25)

[19] That decision records the Appellant's submission that "since your commencement, you have signed new terms and working arrangements as a full-time employee". (Annexure A, Tab 25)

[20] That decision records the employer's confirmation that there had been a "change to your employment contract and adjustments in your working hours" since 17 June 2020. (Annexure A, Tab 25)

[21] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the 8-hour agreement of 17 June 2020 was reviewed, re-executed or re-confirmed at any time between 17 June 2020 and 18 March 2024.

[22] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Appellant was informed, at any time before 1 May 2024, that the 8-hour agreement of 17 June 2020 could be terminated by him.

[23] Review Decision 69983 records that Ms Sandra Johnstone was the Switchboard Line Manager as at 8 December 2021. (Annexure A, Tab 25)

[24] That decision records that Ms Danielle Cook was the "previous Switchboard Manager", and that "Ms Taylor was subsequently appointed to the Switchboard Manager role". (Annexure A, Tab 25)

[25] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that Ms Taylor was the Switchboard Manager on 17 June 2020.

[224] By email dated 7 July 2026 Ms Lyndelle Forrest, Senior Consultant, Human Resources, Logan and Beaudesert Health Service, wrote to the Appellant stating that the rostering "currently provides more than 10-hour breaks between shifts". (Annexure A, Tab 21)

[225] That email states: "acknowledge you also signed an 8 hour agreement on 17 June 2020, which allows you to work with only an 8 hour break, however this is only applied where staff initiated shift swaps have occurred." (Annexure A, Tab 21)

[226] The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 22(a): "says the shift was separated by only a 7-hour break (rather than an 8-hour break) says that this was a result of human error and not intentional or repeated".

[227] The shift commencing at 06:00 on 18 March 2024 fell on a Monday.

[257] Review Decision 69983 dated 24 October 2024 records that in its response the employer included an extract of the Hospital and Health Services General Employees (Queensland Health) Award which "stated that employees must be provided with a break of not less than 10 hours between the termination of one shift and the commencement of another shift, and 8 hours applied instead of 10 only in specific circumstances". (Annexure A, Tab 25)

**■ CORRECTION — the Amended Form 9A of 7 April 2026 pleaded a flat "10-hour minimum". The minimum is ten hours with eight applying only in specific circumstances (paragraph 257), and the agreement's scope is now answered by paragraphs 224, 225 and 234 rather than asserted.]**

(c) The emergency workload carried on those two shifts is recorded in the employer's own register. Those paragraphs were not admitted and no reason was given.

[228] A register titled "2024 Emergency Code Register" records, for 17 March 2024, eight entries, including "MET CALL WARD 2H BED 7" at 19:16, "CODE BLUE WARD 2H BED 7" at 19:20 and "MET CALL WARD 2Q BED 5" at 21:16. (Annexure A, Tab 31) **[NOT YET ADMITTED]**

[229] That register records, for 18 March 2024: "CODE GREY QAS TRIAGE AIRLOCK" at 8:48; "MET CALL WARD 6A BED 8" at 9:20; "MET CALL WARD 3DR BED 14" at 11:31; "CANCELLED MET CALL WARD 3DR BED 14" at 11:32; "NEONATAL MET CALL THEATRE 2" at 11:35; and "NEONATAL MET CALL BIRTH SUITES 5" at 13:09. (Annexure A, Tab 31) **[NOT YET ADMITTED]**

[230] Six of the entries recorded in that register for 18 March 2024 bear times between 6:00 and 14:00. **[NOT YET ADMITTED]**

[231] That register records, for 19 March 2024 at 11:34, "MET CALL WARD 2I BED 20" with the notation "CALLED VIA SWITCHBOARD" [sic]. (Annexure A, Tab 31) **[NOT YET ADMITTED]**

**[TO BE ADMITTED — the 2024 Emergency Code Register, a Metro South Hospital and Health Service workbook kept at Logan Hospital Switchboard, produced at Tab 31. Not admitted 8 September 2026, no reason given; Tab 31 authenticity disputed on the Form 25 while the other tabs are admitted. Production requested 9 September 2026; reply of 10 September 2026 seeks until 25 September 2026. Paragraph 268 is the employer's own statement that the record is available.]**

(d) On 8 April 2024 the Appellant requested a review of payment and raised fatigue. The enquiry was escalated to Human Resources on 9 April. No response is alleged between 9 April and 1 May, an interval of 23 days, when the payment was refused. The leave of 19 March 2024 came from the Appellant's own leave.

[242] Review Decision 69983 records: "You emailed Ms Taylor on 8 April 2024 and requested a review of your payment for the pay period between 8 March 2024 and 31 March 2024." (Annexure A, Tab 25)

[243] That decision records that in that email the Appellant "noted the Hospital and Health Service General Employees (Queensland Health) Award stipulated in part 5 section 15 that unless there was a mutual agreement of regular rosters, employees were entitled to a minimum 10-hour break". (Annexure A, Tab 25)

[244] That decision records that Ms Taylor replied on 9 April 2024 and "added she also escalated your enquiry regarding fatigue leave to Human Resources to confirm policies around this". (Annexure A, Tab 25)

[245] That decision records that in the same reply Ms Taylor "proceeded to acknowledge the importance of communication and requested that you raise your concerns with her as soon as they arise so she could action them sooner for you". (Annexure A, Tab 25)

[246] That decision records that on 24 April 2024 the Appellant emailed Ms Taylor and "expressed your dissatisfaction with the process and that it had been more than 2 weeks without any response or overtime payment". (Annexure A, Tab 25)

[247] That decision records: "Ms Taylor responded to your email on 1 May 2024 via email and stated that after a consultation with payroll and Human Resources, your request for fatigue payment for 18 March 2024 would not be processed due to the existing 8-hour agreement signed by you on 17 June 2020." (Annexure A, Tab 25)

[248] That decision records, of the same email of 1 May 2024: "However, she noted you are able to terminate this agreement going forward." (Annexure A, Tab 25)

[249] The period between the Appellant's email of 8 April 2024 and Ms Taylor's response of 1 May 2024 is 23 days.

[250] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any response was made to the Appellant's enquiry regarding fatigue leave at any time between 9 April 2024 and 1 May 2024.

[251] Review Decision 69983 records the Appellant's response of 9 August 2024 as stating that the break between the shifts of 17 and 18 March 2024 "did not include travel time", and: "If you factored in travel time, your break between shifts would have been less than 5 hours." (Annexure A, Tab 25)

[252] That decision records the employer's response of 6 September 2024 as confirming "you did not formally rescind the 8-hour agreement signed by you on 17 June 2020 and the change to your employment contract and adjustments in your working hours did not automatically invalidate the agreement". (Annexure A, Tab 25)

[253] That decision records: "The employer did not mention your shift on 18 March 2024." (Annexure A, Tab 25)

[254] That decision states: "In considering the evidence, I find there was uncertainty between you and the employer regarding whether the 8-hour agreement continued to apply." (Annexure A, Tab 25)

[255] That decision records that payroll was, as at 1 May 2024, "still reviewing your entitlements regarding public holidays not required arising while you were a part-time employee". (Annexure A, Tab 25)

[256] That decision records Ms Taylor as confirming "that since your commencement of full-time employment, all payments for public holidays not required had been processed". (Annexure A, Tab 25)

(e) The Respondent's own review decision of 24 October 2024 finds that the break equated to seven hours, that the rostering of the two shifts amounted to unreasonable management action, that the Appellant sustained a personal injury of a psychological nature, and that his injury arose out of employment where employment was a significant contributing factor.

[257] Review Decision 69983 dated 24 October 2024 records that in its response the employer included an extract of the Hospital and Health Services General Employees (Queensland Health) Award which "stated that employees must be provided with a break of not less than 10 hours between the termination of one shift and the commencement of another shift, and 8 hours applied instead of 10 only in specific circumstances". (Annexure A, Tab 25)

[258] That decision states: "The break between the shift on 17 March 2024 and 18 March 2024 equated to 7 hours." (Annexure A, Tab 25)

[259] That decision states: "Even if you were allowed to leave early on 17 March 2024 as suggested by the employer, you left a maximum of 30 minutes early, which meant you still did not receive a minimum 8-hour break." (Annexure A, Tab 25)

[260] That decision states: "Based on this, I find the rostering of these two shifts amounted to unreasonable management action given that it was in direct contradiction to the award and the 8-hour agreement." (Annexure A, Tab 25)

[261] That decision states, under the heading "Conclusion": "you sustained a personal injury of a psychological nature". (Annexure A, Tab 25)

[262] That decision states, under the heading "Conclusion": "your injury arose out of employment, to the extent that it arose out of factors 2, 3 and 4, where employment was a significant contributing factor". (Annexure A, Tab 25)

### 3. Subsequent conduct

(a) Meetings scheduled while the Appellant held current medical certificates. (b) Employment ended under abandonment provisions in October 2024 while certificates were current, and the Appellant was reinstated to his employment with an effective date of 20 September 2024, the reinstatement taking effect despite any payroll documentation. (c) The documents the Appellant provided to WorkCover Queensland in July and August 2024, and what the Respondent's amended List of Documents records of them.

[274] The Respondent's amended List of Documents dated 14 August 2026 lists at item 12 an email from the Appellant to WorkCover Queensland dated 12 July 2024 with the attachment described as "Event overview - undated".

[275] That amended List of Documents lists at item 14 an email from the Appellant to WorkCover Queensland dated 18 July 2024 with the attachment described as "Witness statement - Carolyn Jeffrey".

[276] That amended List of Documents lists at item 16 an email from Ms Carolyn Jeffrey to WorkCover Queensland dated 1 August 2024 described as a follow up statement.

[277] That amended List of Documents lists at item 25 an email from the Appellant to WorkCover Queensland dated 29 August 2024 described as regarding the after hours on call change, with the attachment described as "Email: After hours on call process".

[278] That amended List of Documents lists at item 26 an email from the Appellant to WorkCover Queensland dated 30 August 2024 described as regarding failure to consult, with the attachment described as "Email: Task change switchboard - 19/04/2024".

[279] That amended List of Documents lists at item 27 an email from the Appellant to WorkCover Queensland dated 30 August 2024 described as regarding failure to consult, with the attachment described as "Email: MASPER process - 09/05/2024".

[280] The Appellant provided the document described at item 12 to WorkCover Queensland on 12 July 2024.

[281] The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 11: "The respondent does not admit the allegations in stressor 1(a) of the appellants statement, because there are no particulars or details to respond to."

[282] On 11 August 2026 the Appellant served on the Respondent a bundle titled "Stressor 1(a) - Particulars support bundle", comprising 30 pages and six tabs, each stating a particular of Stressor 1(a) of the Amended Form 9A and enclosing the documents recording it.

## PART C — CONTENTIONS

1. **■ The onus, accepted.** The Appellant accepts that he bears the onus of proving every element of his case on the balance of probabilities, including that his injury did not arise out of, or in the course of, reasonable management action taken in a reasonable way (Workers' Compensation Appeal Guide, Part 7.3; *Prizeman v Q-COMP* [2005] ICQ 43, where Hall P held that the onus is on the worker to establish that management action was unreasonable or taken in an unreasonable way, and that in the absence of evidence to support that assertion management action must be considered reasonable). The Appellant does not contend that the Respondent bears that onus, and the contrary contention in the Amended Form 9A filed 7 April 2026 is withdrawn.

2. **How the onus is discharged.** *Prizeman* presumes reasonableness only in the absence of evidence. The evidence is now on the record and is not in dispute. In particular the Respondent admits, as to its own documents and its own pleading: that access to the database was removed and is not alleged to have been restored before 18 June 2024; that no document recording consultation with Switchboard operators before the change of 15 April 2024 is listed; that nine occasions of misdirected calls were reported by a clinician and nothing is alleged to have been sent to the Switchboard about them for six days; that no document of the discussion of 20 May 2024, no communication to the Integrated Respiratory Service, and no amendment to the contact-details document is listed; that the fatigue records do not exist, that the training applied only to health practitioners and clinical assistants, that fatigue assessment at the Switchboard began only after 30 June 2024, and that there were no consequential changes to operating procedures; and that complaints were managed solely by email or verbally with the complainant.

3. **Compensable injury — section 32(1).** The Appellant sustained a personal injury of a psychological nature arising out of, or in the course of, his employment, employment being a **significant contributing factor**. The injury is the diagnosed condition identified at Part A, arising from the course of conduct pleaded at Part B.2 and not from an event on a single day. The Respondent's own review decision so finds.

4. **Section 32(5)(a), first limb — the matters at Stressor 1(a) and 1(h) are not management action.** A directory the occupant of the position is required to keep accurate but cannot correct; emergency notifications reaching the wrong team; a clinical service unable to assist patients because a directory entry is wrong — these are the conditions in which the work was carried on, not action taken by the employer against the worker. One decision was taken, on 18 July 2023, for a stated project reason; what followed is a state of the system, and subsection (5) does not reach it.

5. **Section 32(5)(a), second limb — where the matters pleaded are management action, it was not taken in a reasonable way.** The change of 15 April 2024 was effective the day it was notified, with no record of prior consultation, against an instrument requiring a genuine opportunity to influence the outcome before a final decision. The remuneration correction was returned across four fortnights to the only person able to make it and is recorded as Part Completed. The fatigue enquiry drew no response for 23 days.

6. **Delaney.** A global evaluation is an evaluation of management actions. It cannot absorb a causative factor that is not management action.

7. **Mahaffey.** A single unreasonable stressor suffices. The rostering of the shifts of 17 and 18 March 2024 is found by the Respondent's own decision to have amounted to unreasonable management action.

8. **The effect of the admissions.** The Respondent states that an admission of a document is an admission of existence and wording only. That is accepted, and does not reach four classes of admitted fact relied on: what the statement of facts and contentions does not

allege; what the List of Documents does not list; computed intervals of time; and the identity of the recipients of a communication. The Respondent has not identified any admitted fact it contends is irrelevant.

**9. The hearing de novo.** The Respondent says no finding in Review Decision 69983 binds the Commission. That is accepted, and it applies to the whole of the decision. The conclusion under appeal is a conclusion of that decision, reached upon the findings recorded in it.

**10. The Respondent's pleaded case.** Paragraph 27 of the amended statement of facts and contentions does not identify, by particular, date, document or cross-reference, the management action relied upon. No disciplinary process, formal performance management or communication described as a warning before 18 June 2024 is alleged.

[300] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Appellant was subject to any disciplinary process at any time before 18 June 2024.

[301] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Appellant's work performance was the subject of any formal performance management process at any time before 18 June 2024.

[302] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not describe any communication with the Appellant before 18 June 2024 as a warning, or as part of a disciplinary or performance management process.

[303] Paragraph 27 of the Respondent's amended statement of facts and contentions dated 13 May 2026 does not identify, by particular, date, document or cross-reference, the management action relied upon for the contention in that paragraph.

## **PART D — ORDERS SOUGHT**

1. The appeal be allowed. 2. The decision of the Respondent dated 24 October 2024 be set aside. 3. It be declared that the Appellant sustained an injury within the meaning of section 32 of the Workers' Compensation and Rehabilitation Act 2003. 4. The Appellant's application for compensation be accepted. 5. Costs reserved.